



File No.: EXP202202954

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RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following BACKGROUND

FIRST:

Mr. A.A.A. (hereinafter the complainant) filed a complaint with the Spanish Agency for Data Protection on 31/01/2022. The reasons for the complaint are as follows: the complainant states that to submit a document addressed to the DEPARTMENT OF ECONOMY, KNOWLEDGE AND EMPLOYMENT through the website of the Government of the Canary Islands, he is required to provide mandatory data that affects his privacy; he claims that the form includes a question regarding sex/gender and that the options for response are woman, man, and non-binary; the complainant believes that through this question he is compelled to provide data related to his sexual orientation, and that the entity being complained against is not authorized to collect such data.

Along with the complaint, a screenshot of the disputed form is submitted.

SECOND:

In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the DEPARTMENT OF PUBLIC ADMINISTRATIONS, JUSTICE AND SECURITY on 11/03/2022, for

analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 14/03/2022 as evidenced by the acknowledgment of receipt in the file.

On 22/03/2022, a response was received at this Agency from the DPO, from the Technical General Secretariat of the entity stating that: "The subject of the complaint is related to the Pre-conditions form in labor conflicts, whose competent body is SERMAC, attached to the General Directorate of Labor of the Department of Economy, Knowledge and Employment. Therefore, the DPO has requested the referral to the aforementioned General Directorate of Labor."

Despite the aforementioned referral to the General Directorate of Labor, no response was received from this body.

THIRD:

On 30/04/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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FOURTH:

The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions for the clarification of the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

An information request was made to the DEPARTMENT OF ECONOMY, KNOWLEDGE AND EMPLOYMENT and to its DPO on 06/29/2022, and a response was received from the latter on 07/14/2022, stating that:

On the same day of receiving the notification from the AEPD, the DPO communicated the content of the complaint to the Director General of Labor in his capacity as the data controller.

Furthermore, on 07/04/2022, he sent an official request for information to the General Directorates of Modernization and Quality of Services (DGMCS), and Telecommunications and New Technologies (DGTNT), both in their capacity as responsible for the management of the single electronic headquarters (according to the Order of 02/25/2021, which approves the operation of the electronic headquarters of the Public Administration of the Autonomous Community of the Canary Islands, under the domain <https://sede.gobcan.es>); and more specifically, to the DGTNT in its capacity as the data controller of the treatment called "Database of third parties to facilitate that citizens can interact electronically with the Public Administration of the Autonomous Community of the Canary Islands, as well as the internal management by the Administration": (<https://www.gobiernodecanarias.org/administracionespublicas/tratamientodedatos/tratamientos/apjs/dgtnt/base-de-datos-de-terceros/>).

The report provided by the DGTNT indicates that: "The common fragment Person Physical contains a component to request the sex/gender of the person by marking between Woman, Man, and Non-Binary.

This component is part of the fragment so that those procedures that need it can incorporate it (for example, those that take some measure of positive discrimination towards women).

That component is not visible by default in the Person Physical fragment and it must be the form designer who explicitly indicates that they want that data to appear within the common fragment.

Furthermore, the default use of that component does not include the obligation to respond to one of the options, and it must be the form designer who uses the fragment that passes a parameter to make it mandatory.

Therefore, if in a form from the aforementioned Department that data appears as required, it is because the person who designed that form has explicitly decided so."

In summary, it is deduced that the process of implementing the "sex" field is carried out by the body responsible for the procedure, and it can choose whether to make that field visible or not, and it can also choose whether to make it mandatory or not. But the response format, if it chooses to be visible, is: woman/man/non-binary, with no possibility of modification.

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Therefore, the delegate understands that when a data controller is obliged and authorized to collect the "sex" field, they can only choose the format of responses that appears in the common fragment, which is the subject of this complaint, and for which the DGTNT is responsible, according to the previously mentioned processing of the Third-Party Database.

On the other hand, the decision made by the delegate regarding the complaint is to propose to the General Directorate of Labor that it address the responsible bodies of the electronic headquarters (DGMCS and DGTNT) in order to modify the electronic form of administrative procedure 5096 for the Conciliation of Labor Conflicts, eliminating the response option "non-binary," and maintaining the responses "woman/man" in the information field "sex."

Regarding the causes that have motivated the incident, it is noted that in the Autonomous Community of the Canary Islands, procedures and administrative services are processed by interested parties through the unique electronic headquarters. The management and technical implementation of the information and data of the headquarters correspond to the competent bodies of the Government of the Canary Islands in electronic headquarters: General Directorate of Modernization and Quality of Services, and the General Directorate of Telecommunications and New Technologies (Ministry of Public Administration, Justice, and Security). These bodies manage the electronic forms residing in the headquarters through the Web Unit and use common fragments of "data of the interested party" (where the "sex" field is included in the terms that motivated the complaint: woman/man/non-binary). However, as stated by the DGTNT in its report dated 12/07/2022: "(...) it must be the designer of the form who explicitly indicates that they want that data to appear within the common fragment." If the "sex" field is made visible, there is only one possible response format: woman/man/non-binary. And this response format for the "sex" field can only be modified by the responsible parties of the electronic headquarters and, specifically, by the data controller registered under the name of "Third-Party Database to facilitate that citizens can interact electronically with the Public Administration of the Autonomous Community of the Canary Islands, as well as the internal management by the Administration" (DGTNT).

On the other hand, it should be taken into account that in the procedure subject to the complaint, the information in the "sex" field has the sole purpose of statistics, so that this (biological) condition of the person can be known, to have greater knowledge that helps to implement public gender policies, among other reasons.

Given this, the "non-binary" response could be removed from the "sex" field of the Conciliation of Labor Conflicts procedure form (5096), as it could be in violation of the prohibition stated in Article 9.1 of the European Data Protection Regulation. The "sex" field could remain with the responses woman/man, because it is needed exclusively for statistical purposes, and is legitimized by Article 26 of Law 12/89, of May 9, on public statistical function, and by the usual practice of the National Institute of Statistics, which collects this in

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all its forms. Likewise, in Article 20.a) of Organic Law 3/2007, of March 22, for the effective equality of women and men, the obligation is established to systematically include the variable of "sex" in the collection of data by public authorities, in order to effectively guarantee the integration of the gender perspective in their area of action.

And regarding the measures adopted to prevent similar incidents from occurring, it states:

To urge the Ministry of Economy, Knowledge and Employment to verify all records of personal data processing by the superior bodies that constitute it, in order to ascertain which processes include the

category of the data "sex."

To urge the Ministry of Economy, Knowledge and Employment to verify all forms, electronic or in any supporting formats, whose data processing is the responsibility of the superior bodies that constitute it, with the aim of eliminating the response option "non-binary" in the "sex" field, exclusively maintaining the possible responses "woman/man." This proposal is made due to the fact that the need for the data "sex" is exclusively statistical.

Finally, to urge the General Directorate of Telecommunications and New Technologies, as the data processor: "Database of third parties to facilitate electronic interaction between citizens and the Public Administration of the Autonomous Community of the Canary Islands, as well as the internal management by the Administration," to promote a corporate action by the Government of the Canary Islands to review the data "sex/gender," collected in certain administrative procedures, so that it complies with the provisions of personal data protection legislation. Since it is supposedly the case that in certain procedures, a special category data is being collected, without the due consent of the individual, and without the protection guarantees required by current legislation.

And regarding what is raised, if the response data "non-binary" in the information field "sex" could be considered a special category according to the provisions of Article 9 of REGULATION (EU) 2016/679 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of April 27, 2016, this delegate requests the opinion, and if applicable, the pronouncement of the Spanish Agency for Data Protection.

It also notes that considering that the complainant does not have any affected rights as an interested party in the file processed in this management center, since what is actually being reported or questioned is a procedure not of this General Directorate, regarding one of the procedures managed by its Administrative Services, but of the Government of the Canary Islands itself, as the fragments of the forms are common for cases where the variables of sex must be requested to manage administrative actions, this General Directorate has decided to adopt, regarding the complaint being responded to, the following decisions:

To request a report from the Vice-Ministry of Equality and Diversity of the Ministry of Social Rights, Equality, Diversity, and Youth, given that it has responsibilities for study and applied social research in the field of diversity covering orientation.

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sexual orientation, gender identity, or gender expression, as well as cooperation with the Canary Islands Institute of Statistics in the preparation of statistics on these matters.

Request a report from the Canary Islands Institute of Equality, as the body responsible for promoting the Government of the Canary Islands' policies on equal opportunities, with the aim of promoting conditions that make real and effective the equality of women and men in all areas of political, economic, cultural, and social life.

Request a report from the General Directorate of Modernization and Quality of Services of the Ministry of Public Administration, Justice, and Security, the management center that carried out an inspection action consisting of the evaluation of the personal data protection system in the Public Administration of the Autonomous Community of the Canary Islands, within the Annual Inspection Plan 2021.

Request a report from the provincial heads of the Mediation, Arbitration, and Conciliation Services of this General Directorate.

Require the indicated heads of Service to update in the Information System of the Autonomous Community of the Canary Islands (SICAC) the procedure of "Pre-conciliations in individual labor conflicts" in order to add to it the reference of the Resolution of this General Directorate of Labor by which the activities of personal data processing are registered, no. 691/2022, dated 16/02/2022.

By means of a diligence, it has been verified on 28/12/2022 that the form still includes the question about sex/gender with the three possible answers.

FIFTH:

On 28/04/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning

proceedings against the respondent, for the alleged violations of articles 5.1.c), 6.1, and 9.1 of the GDPR, classified in articles 83.5.a), b), and e) of the GDPR, and sanctioned in accordance with the provisions of article 77 of the LOPDGDD.

SIXTH:

Notified of the initiation agreement, the respondent on 29/05/2023 submitted a written statement of allegations stating, in summary, the following: that he has not received any notification from the AEPD to the DGTNT, responsible for the processing; that the DGTNT has no functional competence over the procedure "5096 Pre-conciliations in individual labor conflicts," a competence attributed to the General Directorate of Labor, nor does the processing "third-party database" relate to the exclusively technical service of maintaining forms and common fragments; regarding the substantive legal issue, concerning the "non-binary" data, reports from the competent departments in the area of equality and non-discrimination, Vice-Ministry of Equality and Diversity, and Technical General Secretariat of the Ministry of Public Administration, Justice, and Security are provided, indicating that the non-binary data is appropriate, necessary, and legitimate; it is not a special protection data and is appropriate, necessary, and legitimate; that there is no violation of article 5.1.c) of the GDPR, nor is there a violation of article 9.1 as it is not considered special data nor of article 6.1, both of the GDPR.

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SEVENTH:

On 16/11/2023, a period for the practice of evidence was initiated, agreeing to the following:

- Consider the complaint filed by the complainant and its documentation, the documents obtained and generated that are part of the procedure, as reproduced for evidentiary purposes.
- Consider the allegations to the initiation agreement of the referenced sanctioning procedure, submitted by the respondent and the documentation provided, as reproduced for evidentiary purposes.

EIGHTH:

On 21/12/2023, a resolution proposal was issued stating that the respondent should be sanctioned for violation of articles 5.1.c) and 9.1 of the GDPR, classified in article 83.5.a) and e) of the GDPR, with a warning.

The proposal was notified on 22/12/2023 without the respondent, after the legally established period, submitting any written allegations.

PROVEN FACTS

FIRST.

On 31/01/2022, a document from the complainant was received at the Spanish Agency for Data Protection stating that to submit a document addressed to the respondent through the website, he must mandatorily provide data that affects his privacy; he claims that the form includes a question regarding sex/gender and that the response must indicate woman, man, and non-binary; the complainant considers that he is obliged to provide data related to his sexual orientation, and the entity being complained about is not authorized to collect such data.

SECOND.

A form posted on the website of the MINISTRY OF ECONOMY, KNOWLEDGE, AND EMPLOYMENT, Electronic Headquarters of the Government of the Canary Islands, related to "Pre-conciliation in labor conflicts" has been submitted. In the section related to Sex/Gender, the responses listed are Man, Woman, and Non-Binary.

THIRD.

The aforementioned form is provided in a non-online format in which only the response M or F appears in the section related to Sex.

FOURTH.

The OPINION 2/2020 from the Transparency and Data Protection Council of Andalusia has been submitted.

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FIFTH.

It is recorded in writing from the DPD dated 03/22/2022 from the Technical General Secretariat of the DEPARTMENT OF ECONOMY, KNOWLEDGE AND EMPLOYMENT, stating that “The subject of the claim is related to the Pre-conditions form in labor conflicts, whose competent body is SERMAC, attached to the General Directorate of Labor of the Department of Economy, Knowledge and Employment. Therefore, the DPD has requested the referral to the aforementioned DG. of Labor.”
SIXTH.

The respondent in a report dated 07/12/2022 has stated that “The common fragment Person Physical contains a component to request the sex/gender of the person by marking between Woman, Man, and Non-Binary. This component is part of the fragment so that those procedures that need it can incorporate it (for example, those that take any measure of positive discrimination towards women). This component is not visible by default in the Person Physical fragment and it must be the form designer who explicitly indicates that they want that data to appear within the common fragment. Furthermore, the default use of this component does not include the obligation to respond to one of the options, and it must be the form designer using the fragment who passes a parameter to make it mandatory. Therefore, if in a form from the aforementioned Department that data appears as required, it is because the person who designed that form has explicitly decided so. On the other hand, it should be noted that in the procedure subject to the claim, the information in the “sex” field has the sole purpose of statistics, so that this (biological) condition of the person can be known, to have greater knowledge that helps to implement public gender policies, among other reasons. Given this, the response “non-binary” could be removed from the “sex” field of the Labor Conflict Conciliation procedure form (5096), as it could be violating the prohibition stated in article 9.1. of the European Data Protection Regulation. The “sex” field could remain with the responses woman/man, because it is needed exclusively for statistical purposes, and is legitimized by article 26 of Law 12/89, of May 9, on public statistical function, and by the usual practice of the National Statistics Institute, which includes it in all its forms. Likewise, in Article 20.a) of Organic Law 3/2007, of March 22, for the effective equality of women and men, the obligation to systematically include the variable of “sex” in data collection by public authorities is established, to effectively guarantee the integration of the gender perspective in their area of action.”

LEGAL GROUNDS

I

Competence
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According to the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Applicable Regulations

The claimed facts materialize in that when the claimant submitted a written request addressed to the

DEPARTMENT OF ECONOMY, KNOWLEDGE AND EMPLOYMENT through the website of the Government of the Canary Islands, the provided form requires mandatory filling of data that affects their privacy, understanding that there is no legitimacy to collect such data and considering that it may constitute a violation of the regulations on personal data protection.

It is necessary to refer to the specific regulations in this matter and the definitions and concepts regulated in the aforementioned norms.

- Law 4/2023, of February 28, for the real and effective equality of trans people and for the guarantee of the rights of LGTBI people (State Law).
- Organic Law 3/2007, of March 22, for the effective equality of women and men (State Law).
- Law 1/2020, of February 26, Canary Islands Law on equality between women and men (Law of the Autonomous Community of the Canary Islands).
- Law 2/2021, of June 7, on social equality and non-discrimination on the grounds of gender identity, gender expression, and sexual characteristics (Law of the Autonomous Community of the Canary Islands).
- Law 12/1989, of May 9, on Public Statistical Function.

As stated in its preamble, Law 4/2023 aims to develop and guarantee the rights of lesbian, gay, bisexual, trans, and intersex people (hereinafter, LGTBI) by eradicating situations of discrimination, to ensure that in Spain, sexual orientation, sexual identity, gender expression, sexual characteristics, and family diversity can be lived with full freedom.

Law 4/2023 in its Article 3, Definitions, letters h), i), and j), establishes the definitions of Sexual orientation, Sexual identity, and Gender expression:

“(…)

h) Sexual orientation: Physical, sexual, or emotional attraction to a person. Sexual orientation can be heterosexual, when one feels physical, sexual, or emotional attraction only to persons of the opposite sex; homosexual, when one feels physical, sexual, or emotional attraction only to persons of the same sex; or bisexual, when one feels physical, sexual, or emotional attraction to persons of different sexes, not necessarily at the same time, in the same way, to the same degree, or with the same intensity. Homosexual individuals may be gay if they are men, or lesbians if they are women.

i) Sexual identity: Internal and individual experience of sex as each person feels and self-defines it, which may or may not correspond with the sex assigned at birth.

j) Gender expression: Manifestation that each person makes of their sexual identity.

(…)”.

Also, Law 2/2021, in its Article 2, Definitions, establishes in its sections 1, 2, and 6 the definitions of Gender identity, Gender expression, and Non-binary person:

“1. Gender identity is the internal and individual experience of gender as each person feels and self-determines it, without being defined by others, which may or may not correspond with the sex assigned at birth and may or may not involve the modification of appearance or bodily functions through pharmacological, surgical, or any other means, as long as it is freely chosen.

2. Gender expression is the way in which each person communicates or expresses their gender identity through their aesthetics, language, behavior, attitudes, or other manifestations, which may or may not coincide with those considered socially relative to the gender assigned socially according to the sex at birth.

(…)

6. Non-binary persons are those whose gender identity or expression lies outside the traditional concepts of man-woman or masculine-feminine, or fluctuates between them.

(…)”.

III

Lawfulness of Processing

Article 6.1 of the GDPR, Lawfulness of Processing, establishes that:

“1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific

purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject.”

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interests do not prevail over the interests or fundamental rights and freedoms of the data subject that require the protection of personal data, particularly when the data subject is a child.

The provisions in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

1. In relation to the aforementioned provision, it should be noted that it relates the different legal bases or grounds on which the processing of personal data may be based, with the concurrence of any of them being necessary to respect the principle of lawfulness provided for in Article 5.1.a) of the GDPR. As previously indicated, in accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, particularly when it is necessary for the execution of a contract in which the affected party is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that those interests do not prevail over the interests or fundamental rights and freedoms of the affected party that require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

The fundamental question that arises, therefore, is to determine whether any of the legitimizing bases listed in paragraphs a) to f) of the aforementioned provision apply to the processing of personal data.

In general terms, the legal basis for processing in relations with public administrations, in those cases where there is a relationship in which it cannot be established that there is a situation of balance between the data controller and the data subject, would not be consent, but rather either the fulfillment of a legal obligation or the fulfillment of a public interest mission or in the exercise of public powers.

In the present case, the legal basis that could legitimize the processing of data is defined in paragraph

c) the processing is necessary for compliance with a legal obligation applicable to the data controller;

In this same sense, the LOPDGDD introduces Article 8, relating to "Processing of data by legal obligation, public interest, or exercise of public powers," which clarifies when the processing of personal data may be considered based on the fulfillment of a legal obligation enforceable against the controller, in the terms provided for in Article 6.1.c) of the GDPR.

Thus, processing may only be considered based on the fulfillment of a legal obligation enforceable against the controller when such is provided for by a norm of European Union law or a norm with the rank of law. These norms will be

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responsible for determining the general conditions of processing and the types of data subject to it, as well as the transfers that may occur as a result of compliance with the legal obligation. This regulation may also impose special conditions on the processing, such as the adoption of additional security measures or others established in Chapter IV of the GDPR.

2. The respondent in their written allegations to the initiation agreement claimed that the legitimizing basis for the processing is anchored in Article 6.1(c) of the GDPR. However, Article 20, Adequacy of statistics and studies, of Organic Law 3/2007 establishes that:

“To make effective the provisions contained in this Law and to ensure the effective integration of the gender perspective in its ordinary activity, public authorities, in the preparation of their studies and statistics, must:

a) Systematically include the variable of sex in the statistics, surveys, and data collection they carry out.

(...)”

However, the applicable Canary Islands regulation in Article 7, Administrative documentation in accordance with gender identity, of Law 2/2021, establishes that:

“1. The public administrations of the Canary Islands, within the scope of their competencies, must adopt all administrative measures and any other necessary measures to ensure that in the files and administrative procedures, individuals are treated according to their felt gender identity, even if they are minors, and without the need to substantiate it with a medical, psychological, or any other type of report.

2. It will be guaranteed that individuals are treated according to their freely determined gender identity, and the dignity and privacy of the person concerned will be respected, as well as the heterogeneity, where applicable, of the family situation.

3. The legal ownership of the rights and obligations corresponding to the person will not be altered, nor will the national identity document number, foreign identification number, or passport be disregarded, as long as it must appear in the procedure. When, due to the nature of the administrative management, it is necessary to register or publicly display the data contained in the aforementioned official documentation, the number of this document, the initials of the legal name, the full surnames, and the name chosen for reasons of gender identity will be collected, avoiding situations of suffering or discrimination.

4. To substantiate gender identity, it will be sufficient for the interested person to expressly state themselves or, where applicable, through their legal representatives, their identification as a woman, man, or non-binary person, as well as the name by which they identify in case it does not match that expressed in the official documentation in the procedure.

The expression of felt gender identity may be made either through a standardized written application or through electronic appearance at the corresponding electronic headquarters, using the legally provided electronic signature systems or through personal appearance at the corresponding registration office.

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5. The object of the request may consist of a general statement for the set of relationships that the interested person maintains or may maintain with the corresponding public administration of the Canary Islands or a specific statement for a specific file or procedure.”

In this regard, the respondent as a Public Administration is bound by the principle of legality in such a way that it can only carry out what the legal system expressly permits.

It is true that, in general terms, the cited regulations require adapting documentation, procedures, and forms in such a way that the gender identity of each person is respected, ensuring that they can be offered treatment in accordance with their felt identity, data that are necessary to collect with the aim of implementing policies that allow for effective equality and non-discrimination of individuals based on their identity, for which it would be covered under letter (c) of Article 6.1 of the GDPR.

But it is also true that in the case we are analyzing, the processing of some personal data for the intended purposes would exceed the aforementioned framework of legitimacy by surpassing the intended purpose.

IV

First obligation breached: Violation of Article 5.1(c) of the GDPR.

The GDPR addresses in its Article 5 the principles that must govern the processing of personal data and mentions among them the principle of minimization, stating:

“1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

(...)”

If we examine the definition, we can deduce that only the personal data that will be processed can be collected, that is, those that are strictly necessary for the processing; that they can only be collected when they are going to be processed and that they can only be used for the purpose for which they were collected, but not for any other objective.

Also, Recital 39 states that: “...Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed.”

The respondent in their written allegations to the initiation agreement states that there is no violation of Article 5.1(c) of the GDPR, and therefore of the principle of data minimization, since the stated legal obligation must be understood as adequate and relevant for their use.

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However, even if there is a legal basis legitimizing the processing of data, one or several specific data points may be deemed inadequate or excessive for the purposes for which they are processed.

In this regard, maintaining the field for sex is not an obsolete and outdated concept, as the respondent claims, but rather in line with the purpose established in the current regulation.

It should be noted that for statistical purposes, Spanish regulations, like those of most European countries, maintain the binary model of sex: male and female, which is referenced at the regulatory level in Article 170 of the Decree of 14/11/1958 approving the Regulation of the Civil Registry Law.

As the respondent himself argues in the proceedings, the variable "sex" with the responses "woman/man" is necessary for statistical purposes and is provided for in Article 26 of Law 12/1989, of May 9, on Public Statistical Function, which establishes the proposal of norms regarding concepts, definitions, units, statistics, classifications, nomenclatures, and codes for the classification of data and the presentation of results, and is used by the INE (National Statistics Institute) by coding the variables male/female in its forms.

Also, Organic Law 3/2007, of March 22, for the effective equality of women and men, in its Article 20, Adjustment of statistics and studies, requires the inclusion of the sex variable in data collection by public authorities:

“In order to effectively implement the provisions contained in this Law and to ensure the effective integration of the gender perspective in their ordinary activities, public authorities, in the preparation of their studies and statistics, must:

a) Systematically include the sex variable in the statistics, surveys, and data collection they carry out. (...)”

And Law 1/2020, of February 26, Canary Law of Equality between Women and Men, similarly establishes in its Article 11, Statistics and research with a gender perspective, that:

“1. The public authorities of the Canary Islands, to effectively ensure the integration of the gender perspective in their area of action, must:

a) Systematically include the sex variable in the statistics, surveys, and data collection they conduct.

b) Incorporate gender indicators in statistical operations that allow for a better understanding of the differences in values, roles, situations, conditions, aspirations, and needs of women and men, their manifestation and interaction in the reality to be analyzed.

c) Analyze the results from the gender dimension.

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d) In all statistics and studies, in addition to collecting the variable of sex and gender, the place of origin will be taken into account for a better understanding of the reality of the Canary Islands by islands.

2. Likewise, they will conduct analyses and research on the situation of inequality based on sex and will disseminate their results. In particular, they will consider the situation and needs of women in rural areas, and of those groups of women who are influenced by various factors of discrimination.

3. Studies with a gender perspective will be promoted in the educational field, regarding games, language use, job orientations, among others that may be determined.

4. Studies with a gender perspective will be promoted in the youth, leisure, employment, and housing sectors for and concerning young people.

Therefore, in accordance with state regulations and their corresponding regional regulations, it is stated that for statistical purposes in the procedures or forms that collect data, the non-binary response must be included.

Furthermore, it should be noted that the introduction of the term non-binary in the form, when not necessary, can even be counterproductive because it would force individuals who do not identify as male or female to declare their gender identity, which is not the purpose pursued by the regulation, and could imply risks for individuals, arising from the handling of such data, such as risks of discrimination. Therefore, the introduction of the aforementioned response should be made, in any case, only when there is a relationship with the purpose pursued for which the specific data is to be obtained and treated, without it being a matter of collecting data for the sake of having it, without a specific purpose, when necessary in relation to the purposes for which they are treated, lacking meaning otherwise. The respondent, in allegations to the initiation agreement, states that in no case can it be considered that the data collected is not in accordance with the principle of minimization since its processing is established by a legal obligation, so in no case should its processing be understood as inappropriate and irrelevant.

However, for this specific case, such a statement cannot be accepted since the processing of the data, even if provided for in regulations, may prove excessive and irrelevant to the intended purpose.

In the Legal Notice document, under the heading Privacy Policy of the electronic headquarters, it establishes that "The data required will be strictly necessary, adequate, and relevant for the purpose for which they are collected and will be stored in an automated file whose purpose is the storage of information of third parties related to the Public Administration of the Autonomous Community of the Canary Islands by electronic means." And that "It is also informed that the personal data provided through the various forms or requests of this electronic headquarters will be processed in the terms described in the informative clauses that appear at the bottom of them," and in the form it is indicated at C/ Jorge Juan, 6

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Heading Purpose of processing: "To manage the administrative action initiated by this application," a generic clause that does not specify the intended purpose, nor determines which data and its destination.

The respondent has also claimed that Judgment No. 83/2023, dated January 23, from Section Four of the Administrative Litigation Chamber based in Seville, of the Superior Court of Justice of Andalusia, requires registering a German national residing in Seville as non-binary gender.

It is true that the judgment states that "From all the above, we conclude that, with substantial acceptance of the appeal, we must revoke the appealed judgment and accept the appellant's request that among the data provided by him when completing the application for registration in the Central

Register of Foreigners, this be modified so that, instead of being recorded as male, it is recorded as 'indeterminate', 'X' or an equivalent expression as it appears in the official documentation issued by the authorities of Germany, the country of which he is a national."

Therefore, the judgment acknowledges the need for consistency in the records, accepting those that are considered to be the own of the interested party according to their legislation.

Furthermore, the case presented and judged in the judicial resolution bears no similarity to the case we are examining.

On the other hand, the respondent forgets that it is also true that the current Spanish legislation, specifically Law 3/2007, of March 15, regulating the rectification of the registration concerning the sex of individuals in the Civil Registry, only allows for the change from male to female or vice versa, but not to a third gender or indeterminate, and the judgment itself warns of the dubious application of this norm to the case at hand, which is based on the absence of legal regulation regarding the debated case, upon which the trial judge has grounded her resolution.

It follows from the above that the actions of the respondent violate the principle of minimization contemplated in Article 5.1.c) of the GDPR, as classified in Article 83.5.a) of the aforementioned Regulation.

V

Classification of the infringement of Article 5.1.c) of the GDPR

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is punishable, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation.

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

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And in its Article 72, it considers for the purposes of prescription that they are: "Very serious infringements:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe in three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

VII

Second obligation breached: infringement of Article 9.1 of the GDPR

Article 9 of the GDPR establishes:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union affiliation, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited."

And in paragraph 2:

"2. Paragraph 1 shall not apply when one of the following circumstances applies:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;"

Also, Article 9.1 of the LOPDGDD states that:

"1. For the purposes of Article 9.2.a) of Regulation (EU) 2016/679, in order to avoid discriminatory

situations, the mere consent of the affected party shall not be sufficient to lift the prohibition on the processing of data whose main purpose is to identify their ideology, trade union affiliation, religion, sexual orientation, beliefs, or racial or ethnic origin.”

There exists a special category of personal data, collected in Article 9.1 of the GDPR, which differs from other personal data in that its processing is prohibited. However, this prohibition does not apply in certain cases when none of the exceptions contemplated in Article 9.2 of the GDPR are present.

The Judgment issued by the Constitutional Court 67/2022, dated 02/06/2022, appeal for protection 6375-2019, considers the issue raised to be of special constitutional significance as it allows for the establishment of doctrine on a problem related to a fundamental right that does not...

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has been sufficiently addressed, defining in the presence of which cause of discrimination we find ourselves when analyzing the case presented for analysis, starting from the distinction between the notions of sex and gender, without forgetting personal conditions such as sexual orientation and gender identity.

“Sex, which allows for the identification of individuals as female, male, or intersex living beings, is given by a complex series of morphological, hormonal, and genetic characteristics, to which certain physical characteristics and potentialities that define us are associated. Characteristics such as, for example and without the intention of providing an exhaustive description, internal and external genitalia, hormonal structure, and chromosomal structure (primary characteristics) or muscle mass, hair distribution, and height (secondary characteristics).

These biological traits, which may not be mutually exclusive in statistically exceptional situations, such as those found in intersex individuals, tend to formulate a binary classification, and only exceptionally a tertiary one, of living beings of the human species.”

For its part, although gender is connected to biological realities or characteristics, it is not fully identified with them, but rather defines a person's social identity based on the social, educational, and cultural constructions of roles, personality traits, attitudes, behaviors, and values that are differentially associated or attributed to men and women, and which include norms, behaviors, roles, external appearance, image, and social expectations associated with one gender or the other. While sex is linked to the concurrence of a series of objectively identifiable or measurable physical traits, the characteristics associated with gender are relative and situational and can vary from one society to another and from one historical time to another.”

And it continues, “Sex and gender are not mutually exclusive, but neither are they synonymous, such that their translation into the legal sphere requires recognizing the existing difference between the two to evaluate the normative consequences of such a distinction and ensure adequate respect for legal certainty (art. 9.3 CE). The distinction between both notions, from a legal perspective, is confirmed by the differentiated mention of sex and gender, as diverse characteristics of the human being, contained in art. 4.3 of the Council of Europe Convention on preventing and combating violence against women and domestic violence (Istanbul Convention, 2011), when it establishes that the ‘implementation by the parties of the provisions of this convention, particularly the measures to protect the rights of victims, must be ensured without any discrimination, based particularly on sex, gender [...] sexual orientation, gender identity, [...] or any other situation.’ Regardless of the normative scope given to the notions of sex and gender, neither can be strictly defined as rights, but rather as conditions or states that have an impact on the exercise of fundamental rights and that constitute one of the many identity elements that can define the right to personal self-determination or to develop, with full respect for human dignity (art. 10 CE), one’s own personal identity.”

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The Constitutional Court (T.C.) in its ruling also refers to sexual orientation and gender identity, stating that "Sexual orientation and gender identity are also personal conditions, with the former referring to the preference for establishing emotional relationships with individuals of one sex or another, and the latter referring to a person's identification with defining characteristics of gender that may or may not coincide with the sex attributed to them, based on the predominant biological characteristics they present from birth. But in addition to being personal conditions, they are elements fundamentally linked to the right to develop a certain private and family life (art. 8 ECHR), as derived from established case law of the European Court of Human Rights, which attributes a broad definition to the concept of 'private life,' encompassing the right to the physical and psychological integrity of a person, including within that notion of integrity their sexual life and sexual orientation...; some aspects of the physical and social identity of the person...; or the gender identity of transgender individuals... Furthermore, art. 8 ECHR protects the right of transgender individuals to personal development and physical and moral security."

It should be noted that the variable present in the form was "sex/gender," and the possible responses or options were "man/woman/non-binary."

The model of the form with the question posed by the respondent does not align with the intended purpose, supposedly to obtain data for statistical purposes, a matter that has already been addressed in the previous grounds and which violates the principle of minimization, as it is considered that the data collected in this manner is unnecessary and excessive.

On the other hand, the inclusion of the response/option non-binary within the sex/gender variable does not strictly relate to the sex option, which would be collected in accordance with the regulation for statistical purposes to effectively ensure the integration of the gender perspective in its area of action in accordance with article 20.a) of Organic Law 3/2007, for the effective equality of women and men, and article 11 of Law 1/2020, Canary Law of Equality between Women and Men, which similarly establishes: a) To systematically include the sex variable in the statistics, surveys, and data collection they carry out," but would instead be linked to a matter of gender identity and is introduced in the form without any justification.

The inclusion of this response in the "sex" variable alters the meaning of the regulations since the data collection provided would modify the normally accepted concept by transitioning to the concept of "sex in the sense," embedded in that of gender identity.

The completion of this variable is based on the standards defined by the National Statistics Institute (INE), which in relation to the statistical variable "sex" indicates the following: "Sex refers to the biological sex of the person. According to the WHO, 'sex' refers to the biological and physiological characteristics that define men and women," while "gender" refers to the social and cultural construction that defines the different emotional, affective, and intellectual characteristics, as well as the behaviors that each society assigns as inherent and natural to men or women, but there may be individuals who do not identify with these characteristics.

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of men and women, and thus, apart from the masculine and feminine, there would be other genders. In this way, there are as many genders as there are identities, and therefore as many gender identities as there are people.

Whereas "sexual orientation" is the emotional, romantic, sexual, and psychological attraction that a person feels consistently over time and is described as distinct from gender identity.

The Universal Declaration of Human Rights, the International Covenant on Civil and Political Rights, and the International Covenant on Economic, Social and Cultural Rights include in their guarantees regarding non-discrimination lists of prohibited grounds for discrimination. These lists do not explicitly mention sexual orientation or gender identity, but conclude with the expressions "any other condition" or "any other social condition." The use of these expressions demonstrates that the intention was for

these lists to be open and illustrative; in other words, the grounds for discrimination are not closed. It is clear that sexual orientation and gender identity are distinct aspects. In its jurisprudence, general comments, and concluding observations, the United Nations treaty bodies have consistently maintained that sexual orientation and gender identity are prohibited grounds for discrimination under international law. Furthermore, the special procedures of the Human Rights Council have long recognized the discrimination that exists due to sexual orientation and gender identity. In the same vein, various international human rights protection mechanisms, such as the Committees, have affirmed that States have the obligation to protect individuals from discrimination based on their sexual orientation. This position is reflected in decisions of the Human Rights Committee – (Toonen v. Australia case of 1994) and in general comments from the Committee on Economic, Social and Cultural Rights, the Committee on the Rights of the Child, the Committee Against Torture, and the Committee on the Elimination of Discrimination Against Women. For example, in its general comment, the Committee on Economic, Social and Cultural Rights states that State parties must ensure that a person's sexual preferences do not constitute an obstacle to realizing the rights recognized by the Covenant. Gender identity is also recognized as a prohibited ground for discrimination. The Committee on the Rights of the Child has interpreted that the right to non-discrimination in Article 2 of the Convention on the Rights of the Child includes sexual orientation and gender identity. Now, the introduction of gender identity identifying its holder must be carried out in any case, as long as there is a relationship between what is being asked and the purpose for which the data is to be obtained so that the data must be processed, without it being a matter of obtaining the data for the sake of having it, without any specific purpose. In this case, the form "Prior Conciliation in Labor Conflicts," which aims for the employers and workers involved in labor-related claims to reach an agreement and settlement, avoiding judicial proceedings, does not add any value to the inclusion of the gender question, nor is this aspect examined or considered. Therefore, it makes no sense to introduce a response with such scope, with no connection to the object.

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of the same. In this regard, there is no perceived need to address such a response when filling out the form.

In any case, a form is presented in which, although it does not explicitly refer to sexual orientation or sexual life, it can be inferred that if the response man/woman is not provided and the non-binary option is checked, it can be considered related to sexual life, since what is ultimately being manifested is a matter that could relate to expressing one's beliefs, as gender identity is an internal matter for each individual, as derived from the definition made by the Inter-American Commission on Human Rights in compliance with resolution AG/RES. 2653 (XLI-O/11): Human Rights, Sexual Orientation, and Gender Identity, 23/04/2012, which defines it as: "Gender identity is the internal and individual experience of gender as each person deeply experiences it, which may or may not correspond with the sex assigned at birth, including the personal experience of the body (which may involve modifying appearance or bodily function through medical, surgical, or other techniques, as long as it is freely chosen) and other expressions of gender, including clothing, manner of speaking, and manners."

That is to say, it is questioning about their felt sex, with which they identify, whether it coincides with the one assigned at birth: woman/man, or non-binary, when their felt sex, with which they identify, does not coincide with the one assigned at birth, which goes beyond the objective and purpose of the form within the context of Prior Conciliation, which is not oriented or established in that sense and individuals should not be compelled to express or declare their personal and intimate beliefs. This prohibition finds its foundation, as indicated by the transcribed precept, in avoiding discriminatory situations, such as those that could arise from having an inventory or registry that recorded individuals' sexual orientation or collected gender identity without a specific purpose or legitimate basis, or beliefs. The same ruling of the TC referred to in section 2 of this same foundation states regarding gender identity that: "As has been recognized, as an argumentative premise in the previous legal foundation,

gender identity is a circumstance related to the free development of personality, intimately linked to the respect for human dignity (art. 10.1 CE), and this aspect of identity, when it does not conform to classic heteronormative parameters, that is, where gender identity and the person's sex are not absolutely coincident, may place the individual in a historically rooted position of social disadvantage that is prohibited by art. 14 CE.”

However, the prohibition of article 9.1 is not applicable in certain cases when any of the exceptions contemplated in article 9.2 of the GDPR occur and, in that sense, according to what has been said, in the present case, there is no exception from article 9.2 of the GDPR that lifts the prohibition it contains. Therefore, it is concluded that the respondent has violated article 9.1 of the GDPR, which finds its typification in article 83.5.e) of the aforementioned Regulation.

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Typification of the infringement of article 9.1 GDPR

The infringement attributed to the respondent is typified in article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent in accordance with articles 5, 6, 7, and 9” is subject to sanction, in accordance with paragraph 5 of the aforementioned article 83 of the cited Regulation.

The LOPDGDD in its article 71, Infringements, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its article 72, it considers for the purposes of prescription that they are: “Infringements considered very serious:

1. According to what is established in article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe in three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

e) The processing of personal data of the categories referred to in article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that precept and in article 9 of this organic law occurring.

(...).”

VIII

Applicable regime to Public Administrations

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes: “Without prejudice to the corrective powers of the supervisory authorities under article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

The LOPDGDD in its article 77, Applicable regime to certain categories of controllers or processors, establishes the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or for which they are processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

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2. When the responsible parties or data processors listed in section 1 commit any of the violations referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the responsible party or data processor, to the body to which they hierarchically depend, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the violations are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order the publication in the Official State Gazette or the corresponding regional gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions related to the entities in section 1 of this article, with explicit indication of the identity of the responsible party or data processor that has committed the infringement. When the competence corresponds to a regional data protection authority, the publicity of these resolutions shall be governed by its specific regulations.

In the case examined, the present sanctioning procedure is based on the presumption that the respondent, as stated in the facts, has violated the regulations on the protection of personal data concerning the principle of minimization and the prohibition of processing specially protected or sensitive data.

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In accordance with the available evidence, such conduct constitutes, on the part of the respondent, a violation of the provisions of Articles 5.1.c) and 9.1 of the GDPR.

It should be noted that the GDPR, without prejudice to what is established in its Article 83, provides in its Article 77 the possibility of declaring the infringement and establishing the necessary measures to correct personal data processing that does not comply with its provisions, when the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law.

Additionally, Article 58 of the GDPR in its paragraph 2 d) states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

IX

Corrective Measures

Since the infringements have been confirmed, it is appropriate to impose on the controller the adoption of adequate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and

within a specified time frame.” The imposition of this measure is compatible with the sanction consisting of a warning, as provided in Article 83.2 of the GDPR.

Therefore, it would be considered appropriate to order the respondent to, within six months from the finality of this resolution, adjust the processing that is the subject of this procedure to the applicable regulations and communicate it to this body. The text of this agreement establishes what the facts have been that led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as they are the ones who fully know their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Such measures could specifically include ensuring compliance with the requirements of data protection regulations regarding the processing carried out by avoiding in the processing of the forms related to “Prior Conciliation in Labor Conflicts” of claims and lawsuits of a labor nature the non-binary response/option within the sex/gender variable included in the regulation for statistical purposes, as well as in all those procedures, forms, requests, and documents processed before their public bodies, implementing the relevant measures.

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It is warned that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,
The Director of the Spanish Agency for Data Protection,

RESOLVES

FIRST: To impose on the DEPARTMENT OF ECONOMY, KNOWLEDGE AND EMPLOYMENT, with NIF S3511001D,

- For infringement of Article 5.1.c) of the GDPR, classified in Article 85.3.a) of the GDPR, a warning sanction.
- For an infringement of Article 9.1 of the GDPR, classified in Article 83.5.e) of the GDPR, a warning sanction.

SECOND: To archive the case against the DEPARTMENT OF ECONOMY, KNOWLEDGE AND EMPLOYMENT, with NIF S3511001D, for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

THIRD: TO ORDER the DEPARTMENT OF ECONOMY, KNOWLEDGE AND EMPLOYMENT, with NIF S3511001D, that pursuant to Article 58.2.d) of the GDPR, within six months from the date this resolution becomes final and enforceable, to prove that it has complied with what is indicated therein, aligning its actions with data protection regulations, in the terms established in the Legal Basis IX, especially regarding the processing it carries out, avoiding in the processing of forms and documents before its public bodies, not only, as in the analyzed case, those related to “Prior Conciliation in Labor Conflicts” of claims and lawsuits of a labor nature, the non-binary response/option within the sex/gender variable, implemented and collected for statistical purposes, by implementing and establishing the relevant measures.

FOURTH: TO NOTIFY this resolution to the DEPARTMENT OF ECONOMY, KNOWLEDGE AND EMPLOYMENT.

FIFTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the

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Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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